Brazoria County District Court

Cause No. 2024-CV-0029

Joann Norton, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-24-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Txeas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies each allegation and asserts that Plaintiff must establish every element of the claim by a preponderance of the evidence.

As and for affirmative defenses, Defendant states the following. First, Plaintiff's alleged injuries were not proximately caused by the collision described in the Petition, because the impact was of low speed and resulted in minimal vehicle damage; any condition Plaintiff claims was pre-existing or casued by an independent intervening event. Second, Plaintiff failed to exercise ordinary care for Plaintiff's own safety, and any recovery must be reduced in proportion to Plaintiff's percentage of responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Third, Plaintiff failed to mitigate damages by unreasonably delaying necessary medical treatment or by declining recommended care, and any recovery must be reduced accordingly.